

26STCV15767 26STCV15767

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-05

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Case Number: 26STCV15767 Hearing Date: August 5, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 5, 2026

Case Name: Patten, et al. v. Bridge Management, XIII, et al.

Case No.: 26STCV15767

Matter: Demurrer; Motion to Strike

Moving Party: Defendants Bridge Management, XIII and Cobra 28 No.5, LP

Responding Party: Plaintiffs Sean Patten and Erlinda Diaz

Notice: OK

Ruling: The Demurrer is sustained in part.

The Motion to Strike is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a landlord-tenant dispute. On May 18, 2026, Plaintiffs Sean Patten and Erlinda Diaz filed the operative Complaint for (1) violation of Civ. Code § 1942.4, (2) tortious breach of warranty of habitability, (3) private nuisance, (4) violation of the UCL, (5) negligence, (6) breach of the covenant of quiet enjoyment, (7) IIED, (8) negligence per se, (9) violation of the CLRA, (10) fraud, (11) intentional influence to vacate, and (12) toxic environmental mold tort.

Demurrer

Defendants Bridge Management, XIII and Cobra 28 No.5, LP now demur to causes of action 1-2, 4, 7-11 for failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist., (1992) 2 Cal.4th 962, 967.)

1st COA

The Demurrer overruled as to the first cause of action. The ultimate facts as to agency citations and 35 days notice have been pleaded. Further facts can be obtained in discovery. (See Khoury v. Maly's of California Inc. (1993) 14 Cal.App.4th 612, 616.)

2nd COA

A tort claim for breach of the implied warranty of habitability requires alleging: (1) a material defective condition; (2) notice to the landlord within a reasonable time; (3) a reasonable opportunity to correct; and (4) resulting damages (Peviani v. Arbors at California Oaks Property Owner, LLC (2021) 62 Cal.App.5th 874, 891). Reading the Complaint as a whole, Plaintiffs sufficiently allege the existence of severe defects (mold, electrical, plumbing, infestations) and that management was notified on multiple occasions but failed to adequately repair them. The Demurrer is overruled as to the second cause of action.

4th COA

The Demurrer is overruled as to the fourth cause of action pursuant to the UCL, which is a derivative claim.

7th COA

The elements of the tort of IIED are: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. . . . Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903, internal quotations omitted.) Liability does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Molko v. Holy Spirit Assn. (1986) 46 Cal.3d 1092, 1122.)

While prolonged delay or complete failure to repair residential defects can in egregious cases support IIED, standard residential maintenance disputes generally do not cross the high bar of "outrageousness" as a matter of law without specific facts demonstrating intentional oppression, threats, or egregious harassment (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051). Plaintiffs rely on conclusory assertions. The Demurrer is sustained as to the IIED claim, with 20 days leave to amend.

8th COA

Negligence per se is an evidentiary doctrine codified in Evidence Code section 669 that creates a rebuttable presumption of negligence; it is not an independent cause of action under California law (*Johnson v. Honeywell Internat. Inc.* (2009) 179 Cal.App.4th 549, 555). Both parties acknowledge this legal principle. Because leave to amend cannot transform an evidentiary rule into a standalone tort, the Demurrer is sustained without leave to amend. Plaintiffs remain free to invoke Evidence Code § 669 to establish the standard of care under their general negligence cause of action.

9th COA

To recover damages under the CLRA, Civil Code section 1782(a) requires a consumer to serve a written notice of the specific alleged violations via certified or registered mail at least 30 days prior to filing suit. The Complaint fails to allege compliance with Section 1782 pre-suit notice. Moreover, to the extent Plaintiffs allege statutory misrepresentation under Civil Code § 1770(a), the pleading fails to set forth the specific misrepresentations or facts showing how a residential lease under these facts qualifies as a transaction for "goods or services" under the Act.

An apartment is real property, not a tangible chattel. Accordingly, an apartment is not a good or a service within the meaning of the CLRA. If the Legislature had intended the CLRA to apply to residential leases, it would not have limited its scope to a lease of "goods or services"; it would have defined a consumer as an individual who leases "property or services." Although the landlord did have statutory duties of maintenance, as well as a duty of maintenance arising out of the warranty of habitability (7 *Miller & Starr, Cal. Real Estate* (3d ed.2004) § 19:116), these were merely incidents of the landlord-tenant relationship; they did not change the fundamental nature of the lease.

Thus, the Demurrer is sustained as to the CLRA claim, without leave to amend.

10th COA

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal. 4th 631, 638, internal quotation marks omitted.)

"[F]raud must be pled specifically; general and conclusory allegations do not suffice. [Citations] Thus the policy of liberal construction of the pleadings . . . will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645, internal quotation marks omitted.)

Plaintiffs failed to plead fraud, whether affirmative or by omission, with reasonable particularity. General references to a "fraudulent repair scam" or generalized assertions that management promised repairs without specific facts establishing intent or the identity of the speakers fall short of the heightened pleading standard.

The Demurrer is sustained as to the fraud claim, with 20 days leave to amend.

11th COA

Civ. Code § 1940.2(a) states, “(a) It is unlawful for a landlord to do any of the following for the purpose of influencing a tenant to vacate a dwelling: (1) Engage in conduct that violates subdivision (a) of Section 484 of the Penal Code. (2) Engage in conduct that violates Section 518 of the Penal Code. (3) Use, or threaten to use, force, willful threats, or menacing conduct constituting a course of conduct that interferes with the tenant’s quiet enjoyment of the premises in violation of Section 1927 that would create an apprehension of harm in a reasonable person. Nothing in this paragraph requires a tenant to be actually or constructively evicted in order to obtain relief. (4) Commit a significant and intentional violation of Section 1954. (5) Threaten to disclose information regarding or relating to the immigration or citizenship status of a tenant, occupant, or other person known to the landlord to be associated with a tenant or occupant. This paragraph does not require a tenant to be actually or constructively evicted in order to obtain relief.”

Penal Code § 484 relates to felony theft. Penal Code § 518 relates to extortion. Civ. Code § 1954 relates to proper entry into a rental unit.

This claim appears to be premised on subdivision (3) as to use of force, threats, and menacing conduct in the sense that Defendants intentionally failed to remediate the property after multiple reports

The Complaint’s allegations as to a failure to remediate alone are not sufficient. The Complaint fails to plead facts that demonstrate threats designed at obtaining an eviction.

The Demurrer is sustained as to the 11th COA, with 20 days leave to amend.

Summary

The Demurrer is overruled as to COAs 1-2, and 4; sustained, with 20 days leave to amend, as to COAs 7, 10-11; and sustained, without leave to amend, as to COAs 8-9.

Motion to Strike

Defendants also seek to strike the Complaint’s references to punitive damages, statutory damages, and attorney fees.

Motions to strike are used to challenge defects in the pleadings not subject to demurrer. Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc. § 435(b)(1).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (Id. § 437(a).) The Court may strike out any irrelevant, false, or improper matter inserted in any pleading, and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. § 436.) An “irrelevant” matter includes any “demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Id. § 431.10(b)(3), (c); see also *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1036-1042.)

Punitive damages are available when the plaintiff establishes oppression, fraud, or malice by clear and convincing evidence. (Civ. Code § 3294(a).)

Malice means “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294(c)(1).)

In this context, despicable conduct is conduct considered "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Scott v. Phoenix Schools, Inc. (2009) 175 Cal.App.4th 702, 715, internal quotation marks omitted.) Oppression means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) Fraud means "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id. § 3294(c)(3).)

"As nonintentional torts support punitive damages when the defendant's conduct 'involves conscious disregard of the rights or safety of others,' our focus is on malice and oppression." (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.)

"[M]alice does not require actual intent to harm. (Id. at p. 895, 157 Cal.Rptr. 693, 598 P.2d 854.) Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. (Id. at pp. 895–896, 157 Cal.Rptr. 693, 598 P.2d 854.) Malice may be proved either expressly through direct evidence or by implication through indirect evidence from which the jury draws inferences." (Angie M. v. Superior Ct. (1995) 37 Cal.App.4th 1217, 1228.)

The Motion is denied as to punitive damages due to the intentional and extensive allegations as to a failure to remediate.

The Motion is denied as to statutory damages and attorneys' fees due to Plaintiffs pleading a viable claim under the first COA pursuant to Civ. Code § 1942.4.

The Motion to Strike is denied.

Moving party to give notice.